
**DEPARTMENT
POLICY****MA Only**

This is an SSI-related Group 1 MA category.

MA is available to a child who requires care in an Intermediate Care Facility for Individuals with Intellectual Disability (ICF/ID), but can be cared for at home for less cost.

The child must be under age 18, unmarried and disabled.

Exception: Children medically approved by the Department of Community Health (DCH) before 10/1/96 must be under age 26.

The income and assets of the child's parents are **not** considered when determining the child's eligibility.

The DCH and MDHHS share responsibility for determining eligibility for the Children's Waiver. All eligibility factors must be met in the calendar month being tested.

**NONFINANCIAL
ELIGIBILITY
FACTORS****DCH
Responsibilities**

DCH determines if medical eligibility exists. That is:

- The child requires a level of care provided in an ICF/ID, and
- It is appropriate to provide such care for the child at home, and
- The average estimated MA cost of caring for the child at home does **not** exceed the average estimated MA cost for the child's care in an ICF/ID.

Mental Health Services to Children and Families in DCH is responsible for the following at application and medical review:

- Obtaining medical evidence of the disability.
- Certifying disability on the DHS-49-A, Medical-Social Eligibility Certification.

DCH certifies that the requirements above are met on an MSA-1785, Policy Decision.

**Communication to
the Local Office**

If the child is **not** receiving MA, DCH will send the family:

- A copy of the MSA-1785 and
- A DCH-1426 with the address of the local office to mail the completed application.

**Local Office
Responsibilities**

DCH will send the MSA-1785 and the DHS-49A to the local MDHHS office when:

- A child is an MA recipient, or
- A child is **not** an MA recipient. DCH will also notify the local MDHHS office when this category can no longer be used for a child. Pursue eligibility for other MA categories when a child is no longer eligible for this category.

Do not authorize MA under this category without a DHS-49-A and MSA-1785 authorizing MA in this category. Use this category when the child is not an SSI or FIP recipient. Use this category before using a Group 2 category.

Treat the MSA-1785 as a request for assistance, if it is received for a child who is **not** an MA applicant or recipient.

Determine if the child meets the MA eligibility factors in the following items:

- BEM 220, Residence.
- BEM 223, Social Security Numbers.
- BEM 225, Citizenship/Alien Status.
- BEM 257, Third Party Resource Liability.
- BEM 260, MA Disability/Blindness.
- BEM 270, Pursuit of Benefits.

Note: DCH is responsible for obtaining medical evidence and certifying disability on the DHS-49-A; see DCH Responsibilities.

Note: An ex parte review (see glossary) is required before Medicaid closures when there is an actual or anticipated change, unless the change would result in closure due to ineligibility for all Medicaid. When possible, an ex parte review should begin at least 90 days before the anticipated change is expected to result in case

closure. The review includes consideration of all MA categories; see Bridges Administrative Manual (BAM) 115 and 220.

INQUIRIES

Inquiries from medical providers or parents concerning medical eligibility (requirements (a) through (c) above) under this category should be directed to your local Community Mental Health Services Program, Developmental Disabilities Division.

FINANCIAL ELIGIBILITY FACTORS

Financial eligibility is determined by the MDHHS local office. **Count only the child's own income and assets.** Do **not** deem income and assets from the child's parents to the child.

Groups

The child is a fiscal and asset group of one.

Assets

The child's countable assets **cannot** exceed the asset limit in Bridges Eligibility Manual (BEM) 400. Countable assets are determined based on MA policies in BEM 400 and 401.

Divestment

Do not apply policy in BEM 405.

Income Eligibility

Income eligibility exists when the child's **gross** income is equal to or less than 300% of the federal SSI benefit rate; see RFT 248.

Gross income is the amount determined after applying the MA policies in BEM 500, 501, 502, 503, 504 and 530. Do not apply the deductions in BEM 540 and 541.

VERIFICATION REQUIREMENTS

Verification requirements for all eligibility factors are in the appropriate manual items.

LEGAL BASE**MA**

Social Security Act, Section 1915 (c)